

STATE OF ILLINOIS, CIRCUIT COURT _____ COUNTY		SMALL CLAIMS SUMMONS	<i>For Court Use Only</i>
Instructions ▼	Plaintiff (First, middle, last name) _____ v. Defendants (First, middle, last name or business name): _____ _____ _____ ☐ Alias Summons (Check this box if this is not the 1 st Summons issued for this Defendant.)		Case Number _____
Directly above, enter the name of the county where you are filing the case.			
Enter your name as Plaintiff.			
Enter the names of all people or businesses you are suing as Defendants.			
Enter the Case Number given by the Circuit Clerk and the amount Defendants owe to you.			Amount Owed: \$ _____ Enter amount of money owed to you as entered in section 3 of your complaint.

IMPORTANT: You have been sued.

- Read all documents attached to this *Summons*.
- You **MUST** attend court on the date in this *Summons*. If you do not, the judge may decide the case without hearing from you. This is called “default.” As a result, you could lose the case.
- You may have to file a document called an *Appearance* that officially informs the court that you would like to participate in the case. If you do not file required court documents on time, the judge may decide the case without hearing from you. This is called “default.” As a result, you could lose the case.
- You do not have to file a document called an *Answer/Response* in a small claims case unless ordered to by the judge.
- All documents referred to in this Summons can be found at ilcourts.info/forms. Other documents may be available from your local Circuit Court Clerk’s office or website.
- After you fill out the necessary documents, you need to electronically file (e-file) them with the court. To e-file, you must create an account with an e-filing service provider. For more information, go to ilcourts.info/efiling. If you cannot e-file, you can get an exemption that allows you to file in-person or by mail.
- You may be charged filing fees, but if you cannot pay them, you can file an *Application for Waiver of Court Fees*.
- It is possible that the court will allow you to attend the first court date in this case in-person or remotely by video or phone. Contact the Circuit Court Clerk’s office or visit the Court’s website to find out whether this is possible and, if so, how to do this.
- Need help? Call or text Illinois Court Help at 833-411-1121 or go to ilcourthelp.gov for information about going to court, including how to fill out and file documents. You can also get free legal information and legal referrals at illinoislegalaid.org. All documents referred to in this Summons can be found at ilcourts.info/forms. Other documents may be available from your local Circuit Court Clerk’s office or website.
- ¿Necesita ayuda? Llame o envíe un mensaje de texto a Illinois Court Help al 833-411-1121, o visite ilcourthelp.gov para obtener información sobre los casos de la corte y cómo completar y presentar formularios.

Plaintiff: If you are suing more than 1 Defendant, fill out a *Small Claims Summons* form for each Defendant.

In 1a, enter the name and address of a Defendant. If you are serving a Registered Agent, include the Registered Agent’s name and address here.	1. Defendant's address and service information:
	a. Defendant's primary address/information for service:
	Name (First, Middle, Last): _____
	Registered Agent's name, if _____
	Street Address, Apt #: _____
	City, State, ZIP: _____
	Telephone: _____
	Email Address: _____

In **1b**, enter a second address for Defendant if you have one.

In **1c**, check how you are sending your documents to that Defendant.

In **2**, enter your contact information.

Enter your complete address, telephone number, and email address, if you have one.

- b. If you have more than one address where Defendant might be found, list that here:

Name (First, Middle, Last): _____
 Street Address, Apt #: _____
 City, State, ZIP: _____
 Telephone: _____ Email Address: _____

- c. Method of service on Defendant

☐ certified copy by certified or registered mail ☐ sheriff OR
☐ special process server

2. Contact information for the Plaintiff:

Name (First, Middle, Last): _____
 Street Address, Apt #: _____
 City, State, ZIP: _____
 Telephone: _____
 Email Address: _____

GETTING COURT DOCUMENTS BY EMAIL: You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.

Important information for the person receiving this *Small Claims Summons* (Defendant):

You have been sued. Read all the documents attached to this *Small Claims Summons*.

You must attend court on the court date below. The judge may want to have a trial on that day. If you do not attend, you could lose the case. If you are not ready for trial on your court date, you may ask the judge for more time. The judge does not have to give you more time.

In **3**, the plaintiff should enter:

- The court date and time (this will be a date 40-61 days from filing).
- The address of the courthouse.
- The call-in or video conference information for remote appearances (if applicable).
- The clerk's phone number and website.

All of this information is available from the Circuit Clerk.

For more information about how to complete **3**, see *How to File & Serve a Small Claims Complaint* at ilcourts.info/forms.

STOP!

The Circuit Clerk will fill in this section.

STOP!

The officer or process server will fill in the Date of Service.

3. Instructions for the person receiving this *Small Claims Summons* (Defendant):

You must attend court on the date below:

_____ at _____ ☐ a.m. ☐ p.m. in _____
Date Time Courtroom

In-person at:

_____ *Courthouse Address City State ZIP*

OR

Remotely (you may be able to attend this court date by phone or video conference. This is called a "Remote Appearance.")

By telephone: _____
Call-in number for telephone remote appearance

By video conference: _____
Video conference website

_____ *Video conference log-in information (meeting ID, password, etc)*

Call the Circuit Clerk at: _____ or visit their website
Circuit Clerk's phone number

at: _____ to find out more about how to do this.
Circuit Clerk's website

Witness this Date: _____

Seal of Court

Clerk of the Court: _____

Date of _____
 (Date to be entered by an officer or process server on the copy of this Summons left with the Defendant or other person.)

STATE OF ILLINOIS, CIRCUIT COURT _____ COUNTY		PROOF OF SERVICE OF SMALL CLAIMS SUMMONS & SMALL CLAIMS COMPLAINT	<i>For Court Use Only</i>
Instructions ▼	Plaintiff (First, middle, last name) _____ v. Defendants (First, middle, last name or business name): _____ _____ _____ ☐ Alias Summons (Check this box if this is not the 1st Summons issued for this Defendant.)		Case Number _____
Directly above, enter the name of the county where you are filing the case.			
Enter your name as Plaintiff.			
Enter the names of all people or businesses you are suing as Defendants.			
Enter the Case Number given by the Circuit Clerk.			

STOP. Do not complete the rest of this form. The Circuit Clerk, sheriff, or special process server will fill in the form.

My name is _____, **and I state:**
First, Middle, Last

☐ **that I served the *Small Claims Summons* and *Small Claims Complaint* on the Defendant,**
_____ **as follows:**

First, Middle, Last

By Circuit Clerk:

☐ By certified mail mailed by the Circuit Clerk:
On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.
Street Address, Unit #: _____
City, State, ZIP: _____

By sheriff or special process server:

☐ Personally on the Defendant:
☐ Male ☐ Female ☐ Non-Binary Approx. Age: _____ Race _____
On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.
Street Address, Unit #: _____
City, State, ZIP: _____

☐ On someone else at the Defendant's home who is at least 13 years old and is a family member or lives there:
On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.
Street Address, Unit #: _____
City, State, ZIP: _____
And left it with: _____

First, Middle, Last

☐ Male ☐ Female ☐ Non-Binary Approx. Age: _____ Race _____

and by sending a copy to this Defendant in a postage-paid, sealed envelope to the above address on _____
Date

☐ On the Corporation's agent, _____
First, Middle, Last
☐ Male ☐ Female ☐ Non-Binary Approx. Age: _____ Race _____
On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.
Street Address, Unit #: _____
City, State, ZIP: _____

☐ **I was not able to serve the *Small Claims Summons* and *Small Claims Complaint* on the Defendant,**

First, Middle, Last

I made the following attempts to serve the *Small Claims Summons* and *Small Claims Complaint* on the Defendant:

1. On this _____ at this time: _____ ☐ a.m. ☐ p.m.
 Street Address, Unit #: _____
 City, State, ZIP: _____
 Other information about service attempt: _____

2. On this _____ at this time: _____ ☐ a.m. ☐ p.m.
 Street Address, Unit #: _____
 City, State, ZIP: _____
 Other information about service attempt: _____

3. On this _____ at this time: _____ ☐ a.m. ☐ p.m.
 Street Address, Unit #: _____
 City, State, ZIP: _____
 Other information about service attempt: _____

DO NOT complete this section. The sheriff or private process server will complete it.

Under the Code of Civil Procedure, [735 ILCS 5/1-109](#), making a statement on this form that you know to be false is perjury, a Class 3 Felony.

If you are a special process server, or licensed private detective, your signature certifies that everything on the *Proof of Service of Small Claims Summons & Small Claims Complaint* is true and correct to the best of your knowledge. You understand that making a false statement on this form could be perjury.

By:

Signature by ☐ Sheriff
☐ *Special process server/*
 licensed private
 detective

FEES

By certified registered mail: \$ _____
 Service and Return: \$ _____
 Miles: \$ _____
 Total \$ _____

Print Name

If *Summons* is served by licensed private detective or private detective agency:

License Number: _____